RESOLUTION NO. 877

A RESOLUTION of the Board of Directors of
Vancouver School District No. 37, Clark County, Washington
Seeking State Board of Education – Emergency Waiver of High School Graduation Credits

WHEREAS, Chapter 28A.320 RCW authorizes local school boards to govern their respective districts, including adopting, revising, and suspending local board policies;

WHEREAS, Chapter 28A.230.090 authorizes the State Board of Education to set graduation requirements and authorizes local districts to decide whether a student has met the graduation requirements.

WHEREAS the Vancouver School District adopted Policy 2410 – High School Graduation Requirements establishing that the board will establish graduation requirements that at a minimum satisfy those established by the State Board of Education.

WHEREAS, the Board has approved, as appropriate, waiver of high school graduation credits, which authorizes the Superintendent or designee to grant waivers of a maximum of two elective credits required for high school graduation based on an individual student's circumstances.

WHEREAS, sections 2 through 3, chapter 7, Laws of 2021 (EHB 1121) authorized the State Board of Education to administer a new and ongoing emergency waiver program, which program is separate from and in addition to the waiver of two elective credits addressed in Policy 2410 – High School Graduation Requirements. The purpose of the emergency waiver program is to provide an equitable mechanism that prevents students from being unduly impacted by unforeseen disruptions to coursework and assessments resulting from an emergency as defined in RCW 38.52.010 or as declared by an authorized federal official. The State Board of Education has adopted emergency rules that respond to the gubernatorial declaration of emergency of February 29, 2020 and apply to the Classes of 2020 and 2021 in the 2020-2021 school year. The emergency rules allow the district to seek waivers for both subject area credit and pathway graduation requirements for eligible students on an individual student basis after the district completes all the emergency waiver program requirements.

WHEREAS, the Board wishes to ensure that the district comply with Chapter 180-111 WAC, which constitutes the State Board of Education's emergency waiver program, so that any district students who would be eligible for a waiver of credits or the graduation pathway or both under the emergency waiver program may thereby benefit.

NOW, THEREFORE BE IT RESOLVED, that the Vancouver School District hereby authorizes the Superintendent or designee to implement an emergency waiver program consistent with WAC 180-111 as the Superintendent or designee determines appropriate. The district will demonstrate a good faith effort, as defined in WAC 180-111-020, to help individual students meet credit-based and pathway graduation requirements through other options before considering the emergency waiver. The district will consult with the individual student, and make a reasonable effort to consult with a parent or guardian of the student, and will make a reasonable effort to provide information about this waiver in the preferred languages of the student, and of the parent or guardian of the student if applicable. This information includes what is being waived for the individual student, potential benefits and limitations that could result from receiving the waiver, including impacts on postsecondary plans, the option for the individual student to decline the waiver and for the student to be provided with the opportunity to earn the credits needed to complete graduation requirements through continued enrollment beyond the planned graduation date. The district will grant

emergency waivers to eligible students who desire the waiver and have demonstrated postsecondary preparation, as defined in WAC 180-111-020. The district will maintain a record of courses and requirements waived as part of the individual student record and will report to the State Board of Education as specified in WAC 180-111-040(4).

BE IT FURTHER RESOLVED that the district will ensure equity in administering the emergency waiver. The district's plan will include culturally responsive ways, based on the district's local community, to communicate with students and families about the waiver and the process to request, appeal, or decline the waiver. The district's plan will also include a process for further review and recommendations by a panel under WAC 180-111-040(1) after an initial decision was made to decline an individual student's waiver. The district will review disaggregated waiver data and take appropriate actions to ensure equitable administration if disproportionality is found, including supports under WAC 180-111-020(1) to help students meet requirements before the conclusion of the school year.

BE IT FURTHER RESOLVED that execution of this Resolution is conclusive evidence of the Board's approval of this action and of the authority granted herein. The Board warrants that it has, and at the time of this action had, full power and lawful authority to adopt this instrument. This resolution pertains to the 2020-2021 school year and expires on August 31, 2021, which is the last day the district may seek emergency waiver for the 2020-2021 school year under Chapter 180-111 WAC.

ADOPTED by the Board of Directors of Vancouver School District No.37, Clark County, Washington, at a meeting thereof held this 11th day of May, 2021.

ATTEST:

VANCOUVER SCHOOL DISTRICT NO. 37
CLARK COUNTY WASHINGTON

Secretary, Board of Directors

President, Board of Directors

Vice President, Board of Directors

Director, Board of Directors

Director, Board of Directors

Director, Board of Directors